

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602113	BANUELOS VS DEL REAL FOODS, LLC	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling:

The Motion for Leave to Intervene is unopposed. Accordingly, the motion is granted. The proposed order submitted has been signed by the Court.

CMC for 10/7/2026 is confirmed.

6.

CASE #	CASE NAME	HEARING NAME
CVSW2406359	40723 MURRIETA HOT SPRINGS RD., LLC, VS TRG MURRIETA, LLC	MOTION FOR LEAVE TO AMEND CROSS COMPLAINT

Tentative Ruling:

C.C.P. §473 authorizes the court to grant leave to amend any pleading “in furtherance of justice, and on such terms as may be proper.” A motion for relief under CCP § 473 is addressed to the sound discretion of the trial court, and the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused. (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898; *Record v. Reason* (1999) 73 Cal.App.4th 472, 486.)3.1324(b).

California courts have developed “a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.” (*Dunzweiler v. Superior Court* (1968) 267 Cal.App.2d 569, 576.) Thus, if a motion is timely and the amended pleading will not prejudice the opposing party, it is error not to allow leave to amend. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”].)

While courts will occasionally deny leave to amend when the motion is brought on the eve of trial (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-88; *Nelson v. Specialty Records, Inc.* (1970) 11 Cal.App.3d 126, 139-40), “it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co.*, 213 Cal.App.3d 1045, 1048; see also *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice can occur when an amendment “open[s] up an entirely new field of inquiry without any satisfactory explanation as to why this major change in point of attack had not been made long

before trial.” (*Magpali*, 48 Cal.App.4th 471, 487) or when allowing amendment would result in a delay of trial, loss of critical evidence, or added preparation expenses. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) But the fact that the amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, is not prejudice. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

A motion for leave to amend must identify by page, paragraph and line number any additions to and deletions from the prior pleading. (C.R.C. rule 3.1324(a)(2)-(3).) Further, the motion must be accompanied by a declaration and must specify: (1) the effect of the amendment; (2) why the amendment is proper and necessary; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the amendment was not made earlier. (C.R.C. rule 3.1324(b)(1)-(4).)

While leave to amend may be denied if the proposed amendment fails to state a cause of action (*California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274), “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*California Casualty*, 173 Cal.App.3d 173, 281.) Leave to amend should be denied for failure to state a cause of action only when the insufficiency of the proposed amendment is established by controlling precedent and the insufficiency could not be cured by further appropriate amendment. (*California Casualty*, 173 Cal.App.3d 173, 281.)

The motion is timely. Additionally, the Court finds that the proposed First Amended Cross-Complaint will not prejudice the opposing party. The matter has yet to be set for trial and discovery remains open. **The motion is Granted.**

The Court orders the Cross-Complainant to file any First Amended Cross-Complaint within 15 days of this order. The entire matter will be set for a **Case Management Conference** on 11/19/2026 at 8:30 a.m. in Dept. 6

The **OSC** as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of all defendants pursuant to CRC 3.110(g) as to DAVID ALLEN GRABHORN, 40723 MURRIETA HOT SPRINGS RD., LLC is vacated.